

Spring 2 Health ABN 71 665 820 986

Choice Advocacy and Control Policy

1. Introduction

1.1 Purpose

This Policy and the Policies and Procedures and related documentation set out in section 1.5 below (**Related Documentation**) supports {org.name} to apply the Independence and informed choice NDIS Practice Standard.

1.2 Policy Aims

{org.name} is committed to ensuring that each participant is supported by the provider to make informed choices, exercise control and maximise their independence relating to the support provided.

1.3 NDIS Quality Indicators

In this regard, {org.name} aims to demonstrate each of the following quality indicators through the application of this Policy and the relevant systems, procedures, workflows and other strategies referred to in this Policy and the Related Documentation:

- (a) Each participant is supported by {org.name} to make informed choices, exercise control and maximise their independence relating to the support provided.
- (b) Active decision-making and individual choice is supported for each participant including the timely provision of information using the language, mode of communication and terms that the participant is most likely to understand.
- (c) Each participant's right to the dignity of risk in decision-making is supported. When needed, each participant is supported to make informed choices about the benefits and risks of the options under consideration.
- (d) Each participant's autonomy is respected, including their right to intimacy and sexual expression.
- (e) Each participant is supported to make informed choices, exercise control and maximise their independence relating to the supports provided.
- (f) Each participant has sufficient time to consider and review their options and seek advice if required, at any stage of support provision, including assessment, planning, provision, review and exit.
- (g) Each participant's right to access an advocate (including an independent advocate) of their choosing is supported, as is their right to have the advocate present.

1.4 Scope

- (a) This Policy applies to the provision of all services and supports at {org.name}.
- (b) All permanent, fixed term and casual staff, contractors and volunteers are required to take full responsibility for ensuring full understanding of the commitments outlined in this Policy.
- (c) The relevant persons specified in the column corresponding to a procedure described in this Policy have the responsibility to implement the relevant systems, procedures, workflows and other strategies referred to in the relevant procedure.

1.5 Related Documentation

The application of the above NDIS Practice Standard by {org.name} is supported in part by and should be read alongside the Policies and Procedures and related documentation corresponding to this Policy in the Policy Register.

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2. Definitions

In this Policy:

{org.name} means {org.legal_name} ABN {org.abn}.

Client means a client of {org.name} (including an NDIS participant).

Key Management Personnel means {org.primary_contact.name}, {org.signatory.name} and other key management personnel involved in {org.name} from time to time.

Legislation Register means the register of legislation, regulations, rules and guidelines maintained by {org.name}.

Policy Register means the register of policies of {org.name}.

Principal means {org.primary_contact.name} and {org.signatory.name}.

Related Documentation has the meaning given to that term in section 1.1.

Worker means a permanent, fixed term or casual member of staff, a contractor or volunteer employed or otherwise engaged by {org.name} and includes the Principal.

3. Policy Statement

- (a) In the provision of its supports and services, {org.name} is committed to ensuring that all people including people with disability have the right to:
- (1) respect for their human worth and dignity.
 - (2) freedom of expression, self-determination and decision-making.
 - (3) realise their potential for physical, social, emotional and intellectual development.
 - (4) full participation in society equal to other people, according to their individual and cultural needs and preferences.
 - (5) autonomy including their right to intimacy and sexual expression.
 - (6) information and support to understand and exercise their legal and human rights.
 - (7) privacy of their personal information.
 - (8) raise concerns and be supported to formalise complaints.
- (b) {org.name} is committed to collaboration and consultation with persons with disability (and the Client's family, carers and chosen community where appropriate) to promote and ensure active choice and control in relation to services and supports.
- (c) {org.name} is committed to providing Clients with sufficient time for collaboration with and support for the individual Client to participate in decisions that affect their lives through their involvement in the planning, provision, management and evaluation of the services and support they receive.
- (d) In the provision of its supports and services, {org.name} is committed to employing a person-centred approach in service delivery, placing the Client's right to self-determination at the centre of decision making processes, including keeping the Client informed of choices, opportunities and potential limitations so they can make informed choices, including a dignity of risk decision.

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- (e) {org.name} will proactively and sensitively support our Clients to develop their capacity to make informed choices, exercise control and maximise their independence relating to the services and support we provide to them.
- (f) Each Client has sufficient time to consider and review their options and seek advice if required, at any stage of support provision, including assessment, planning, provision, review and exit.
- (g) Each Client's right to access an advocate (including an independent advocate) of their choosing is supported, as is their right to have the advocate present at any time and in connection with the provision of services and supported by {org.name} to the Client.
- (h) In the provision of its support and services, {org.name} employs skilled staff and has systems and processes in place to support staff to promote and ensure active choice and control by Clients in relation to services and support provided by {org.name} to them.

4. Procedure

The Policy is supported by the following Procedures which are intended to clarify the responsibilities of the board, Principal, Key Management Personnel and other Workers and make explicit the underlying principles of the Policy. The Procedures work together dynamically and are relevant to all parts of {org.name}. The Procedures are not ordered in priority and all are important to achieving the aims of the Policy Statement.

Procedure	Responsibility
4.1 Information to assist the Client to make choices, exercise control and maximise their independence relating to supports provided Ensure each Client and their families, carers, chosen community or advocate are provided with: (a) our Client Information Booklet and Client Information Booklet (Easy Read version), which shall include information about: (1) {org.name} and the services and supports provided by {org.name}; (2) our commitment to the Client's legal and human rights and exercising informed choice and control; (3) includes those specific rights the Client is entitled to as a client of {org.name} including the legal and human rights set out in the Policy Statement; (4) information for accessing an interpreter service or bilingual staff; and (5) information for accessing an advocate or legal service (including an independent advocate); (b) a Client Intake Form which provides an opportunity for the Client to tell us what is important to them including with respect to their requested services and supports, personal support needs and requirements, their goals and aspirations, their likes and dislikes and their preferences in respect of communication;	Principal and Key Management Personnel

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(c) a Privacy and Consent Form; (d) a Advocacy or Support Person Request Form; and (e) a Feedback and Complaints Form and Summary.	
4.2 Communicate in the language, mode of communication and terms that the Client is most likely to understand Support Clients to communicate about the provision of their services and supports in a manner which is responsive to their needs and in the language, mode of communication and terms that the Client is most likely to understand by: (a) using respectful, open, clear, and honest communication in all professional interactions (e.g., spoken, written, social media). (b) communicating effectively with Clients to promote their understanding of proposed supports and services (e.g., active listening, use of plain language, encouraging questions). (c) identifying potential barriers to effective communication and making a reasonable effort to address these barriers including by providing information and materials on how to access interpreter services, legal and advocacy services. (d) working with bilingual assessment staff, interpreters (linguistic and/or sign), communication specialists and relevant advocacy agencies/services that can also assist Client participation, inclusion, informed choice and control. (e) encouraging Clients to engage with their family, friends and chosen community if {org.name} has been directed to do so in accordance with the Client induction materials, their support agreement or support plan (as applicable). (f) informing clients of their rights to make informed choices, exercise control and maximise their independence relating to the supports provided in relation to services. (g) supporting them to exercise their rights and responsibilities. (h) documenting all material communications accurately, clearly, professionally and in a timely manner and including them in the Client's information file. (i) supporting Clients, their family, carers and support network to find, use and access the services and supports they need and work with them to reduce any limitations or barriers where they exist. Aboriginal, Torres Strait Islander and all people from Cultural, linguistic and diverse backgrounds (CALD) are supported in accessing services and support in the community in an inclusive and supportive environment.	All Workers
4.3 Assist Clients to lead and direct their services and supports Assist each Client to lead and direct the services and supports to be provided to them by {org.name}, supporting them to set the goals that will achieve their personal aspirations, make decisions and maximise their independence including	All Workers

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by: (a) communicating with the Client in accordance with section 4.2; (b) asking the Client to tell us what is important to them in the Client intake form including their requested services, personal support needs and requirements, their goals and aspirations, their likes and dislikes and their preferences in respect of communication; (c) meeting and asking the Client to tell us what is important to them including providing them with any support required to assist them to complete their Client intake form and discussing with them our plan to assist them to achieve their goals and meet their individual needs; (d) gaining the Client's consent to the level of involvement that other people such as their family, carers, chosen community or advocate have at the client assessment or support planning stage (prior to the provision of supports) in planning and decision making about the Client's life and how they choose to live it including decisions about services and supports; (e) if the Client has provided their consent, supporting the Client to engage with their family, friends, chosen community or advocate if required when communicating their needs and decisions to us; (f) making every effort to enable the Client to make a decision or to come to an agreement with its support network before a substitute decision maker is engaged; (g) respecting the views of the Client's family and carers but recognising that the Client has the final say in the planning and decision making about their services and supports (unless a guardian has been legally appointed); (h) recognising that our Clients can communicate their choices, likes and dislikes in many ways, for example, verbal communication, withdrawal, acting out, engagement and disengagement, aggression, excitement, despondency and joyfulness; (i) listening intently to what the Client and where appropriate their family, friends and chosen community has told us; (j) using person-centred thinking, planning and approaches when working with the Client to design the service and supports that will meet their personal needs and support their goals and aspirations; (k) recognising and responding to individual difference such as age, gender, culture, heritage, language, faith, sexual identity and relationship status and other relevant factors by applying the principles and policies in the Diversity Policy; (l) working with the Client and adapting to their individual needs as they change over time regardless of the frequency or cause and not being "anchored" to the information provided or preferences expressed at the client assessment or support planning stage; and (m) understanding the cultural/ language needs of our Client's family and carers, where they are involved, respecting the social structure of the Aboriginal and Torres Strait Islander Communities.	
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4.4 Support Clients to make informed choices, exercise control and maximise their independence (a) Respect, promote and uphold each Client's rights and responsibilities including the legal and human rights set out in the Policy Statement. (b) Respect each Client's individual choices and support them to have a voice and exercise their legal and human rights. (c) Support each Client's right to make the decisions about their life, enjoy a valued role in their community, have privacy and be free from discrimination. (d) Help our Clients discover and make the most of their strengths, abilities, interests and talent. (e) Support Clients to explore the things that are important to them such as family, culture, religion, friends and social networks, earning an income or having a valued community role; and important for them such as medical services, therapy, skill development, legal aid and advocacy.	All Workers
4.5 Each participant is supported to take risks to enable them to live the best life they can (Dignity of Risk) (a) Where a Client's choice involves risk to their health and/or safety, they are supported to understand the risks, the potential consequences to themselves and others, and how varying degrees of risk can be managed to assist the client to live the way they choose. (b) Depending on the severity of the risk, complete a Risk Taking Form to facilitate the management of such risk. Give a signed copy of the Risk Taking Form to the Client and keep a copy in the Client's file. (c) Support and encourage Clients to use self-protective strategies and behaviours when exercising their right to take risks. (a) Support the Client to consult with their Representative or access an Advocate or legal service (including an independent Advocate) when considering risks which present potential consequences to themselves and others.	
4.6 Respecting autonomy including the right to intimacy and sexual expression (a) Recognise and respect: (1) that persons with disability may still be interested in sexual expression and may be sexually active. (2) all relationships (existing and newly formed) without judgement or discrimination. (3) that sexuality takes many forms and that some Clients may have several partners, connections or romances. (4) a person's right to privacy (for example, by knocking on the Client's door, then waiting for an answer before entering).	All Workers

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(b) Treat Clients with respect and keep their sexuality confidential. (c) Support Clients and residents if sexual harassment or abuse is suspected and report it to the Principal. (d) Be mindful that some Clients may have experienced trauma in the past including that due to their sexuality, sexual choices or gender identity.	
4.7 Providing Clients with sufficient time to consider, review their options and seek advice if required Except in the case of emergency, at all stages of support provision, including assessment, planning, provision, review and exit: (a) always encourage the Client to take their time and review their options in respect of their supports and services and about their lives in general including in connection with the provision of any new supports or services or changes to existing supports and services; (b) if the Client has provided their consent to the involvement of other people in connection with their life or the provision of supports and services by {org.name}, encourage the Client to engage with those people in relation to any material decision in respect of their life at any and all stages of support provision, including assessment, planning, provision, review and exit; (c) make every effort to enable the Client to make a decision or where appropriate, assist families, carers and advocates to come to an agreement on their own terms and own timeframe; and (d) respect the views of the Client's family and carers but recognise that the Client has the final say in the planning and decision making about their services and supports (unless a guardian has been legally appointed) and allow the Client to come to such a decision on their own terms and own timeframe.	All Workers
4.8 Providing access to advocacy Encourage and support Clients to access legal or advocacy services that can assist them to make informed choices, exercise control and maximise their independence while they are receiving a service or support from {org.name} by providing information in relation to how to access such services in Client Induction Materials.	Principal and Key Management Personnel
4.9 Maintain Clients' rights to privacy Maintain the Client's right to privacy, ensuring that records and information about them and in relation to their choices, control and independence are only used in accordance with this Policy and Related Documentation or under the Client's direction for the purpose of providing services and supports and are otherwise kept confidential (and only disclosed in line with applicable legislation and Related Documentation).	All Workers
4.10 Welcome feedback in relation to promoting human legal and human rights and enabling informed choice and control (a) Create an environment where all feedback is valued including from Clients	All Workers

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(including persons with disability), Workers and others in relation to the subject matter of this Policy and the implementation of these procedures. (b) Welcome feedback (including anonymously) and promptly deal with it pursuant to the Feedback and Complaints Management and Resolution Policy. (c) Actively consult with Clients to continually improve in delivering best practice in service delivery. (d) Conduct an annual survey of all Workers, Clients, their support networks and other stakeholders and ask them to suggest areas for improvement in relation to {org.name}'s application of this Policy including its commitment to the Client making informed choices, exercising control and maximising their independence relating to the services and supports provided.	
4.11 Workers to commit to Policy (a) All Workers are provided with a copy of this Policy in their orientation and induction materials. (b) Under their employment, contractor agreement or binding letter agreement, each Worker at {org.name} is required to take responsibility for ensuring: (1) full understanding of the commitments outlined in this policy as well as procedures and other strategies designed to ensure that the principles of this policy are upheld; and (2) ensuring that the principles and procedures and other strategies within this Policy are applied in their daily work.	Principal and Key Management Personnel
4.12 Train Workers (a) Train Workers to assist them to understand how to apply this Policy and these procedures in everyday practice during their induction, and as part of ongoing refresher training and/or when processes change. (b) Train and support Workers to identify and report a breach of a Client's rights by any other party.	Principal and Key Management Personnel
4.13 Supporting cultural, linguistic and diverse backgrounds Aboriginal, Torres Strait Islander and all people from Cultural, linguistic and diverse backgrounds (CALD) are supported in accessing services and support in the community in an inclusive and supportive environment.	Principal and Key Management Personnel
4.14 Policy adoption Adopt and maintain the Policy and Related Documentation which assists {org.name} to demonstrate the relevant NDIS Quality Indicators related to the Choice, Advocacy and Control NDIS Practice Standard.	The board

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5. General

5.1 Relevant Legislation, Regulations, Rules and Guidelines

Legislation, Rules, Guidelines and Policies apply to this Policy and Related Documentation as set out in the Legislation Register.

5.2 Inconsistency

If and to the extent that the terms of this Policy are or would be inconsistent with the requirements of any applicable law, this Policy is deemed to be amended but only to the extent required to comply with the applicable law.

5.3 Policy Details

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